

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
THOMAS SANTOS and ESMIL ROGIERS,

SUMMONS

Plaintiffs,

-against-

Plaintiff designates
BRONX County as the
place of trial
The basis of venue is
CPLR 504 (3)

CITY OF NEW YORK, Det. PETER QUATRALE,
Sgt. ELVIN PICHARDO, and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by Plaintiff
and meant to designate additional offending officers,
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
November 7, 2019


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Det. Peter Quatrale, Shield 31215 and Sgt. Elvin Pichardo, Shield 004287 of the 46th Precinct
2120 Ryer Avenue Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
THOMAS SANTOS and ESMIL ROGIERS,

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. PETER QUATRALE,
Sgt. ELVIN PICHARDO and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by Plaintiff
and meant to designate additional offending officers,

Defendants.
-----X

Plaintiffs, by their attorney, **Jonathan L. Gleit, Esq.**, complaining of the
Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS THOMAS SANTOS and ESMIL ROGIERS

1. At the time of the commencement of this action, Plaintiff THOMAS SANTOS was
and still is resident of the County of Bronx, City and State of New York.
2. At the time of the commencement of this action, Plaintiff ESMIL ROGIERS was
and still is resident of the County of Bronx, City and State of New York.
3. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

4. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

5. That the CITY OF NEW YORK maintains a Police Department.

6. That on and about October 5, 2018, Det. PETER QUATRALE was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

7. That on and about October 5, 2018, at approximately 1 P.M., Det. PETER QUATRALE was working and acting within the scope of his employment as a Police Officer, and under the color of law.

8. That on and about October 5, 2018, Sgt. ELVIN PICHARDO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

9. That on and about October 5, 2018, at approximately 1 P.M., Sgt. ELVIN PICHARDO was working and acting within the scope of his employment as a Police Officer, and under the color of law.

10. That on and about October 5, 2018, OFFICERS JOHN AND/OR JAMES DOE, whose actual names are presently unknowable by Plaintiffs but necessarily and exclusively known by defendants by virtue of their involvement with the arrest and

detentions of Plaintiffs, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on and about October 5, 2018 at approximately 1 P.M., OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officers, and under the color of law.

12. That on or about October 5, 2018 at approximately 1 P.M., at or near in front of 1760 Andrews Avenue, Bronx, New York, the Plaintiffs THOMAS SANTOS and ESMIL ROGIERS, incorrectly arrested as ESMIL ROGERS, were improperly stopped, questioned, detained, arrested and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine THOMAS SANTOS and ESMIL ROGIERS.

13. That at the above time and place, plaintiffs THOMAS SANTOS and ESMIL ROGIERS were seated in a parked vehicle and were approached and questioned by the defendants without any reasonable suspicion that a crime or infraction had been or was about to be committed.

14. That at the above time and place, the defendants approached the automobile that Plaintiffs were occupying due to the fact that the Plaintiffs were males of a minority population.

15. That the defendants, upon wrongfully searching the Plaintiffs, recovered from Plaintiff ESMIL ROGIERS, from his pocket, an item that did not justify an arrest, but falsely claimed that both Plaintiffs were in possession of a lit burning marijuana cigarette, when, in fact, they were not.
16. That the defendants, their agents, servants and/or employees arrested and confined the Plaintiffs without any basis in law or fact and without reasonable, probable or just cause or justification.
17. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiffs and took their property without any basis in law or fact, and Plaintiffs being aware of their unlawful confinement were thereby caused freight, shock, emotional distress and physical consequences.
18. That the defendants, their agents, servants and/or employees arrested the Plaintiffs without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.
19. That all criminal charges brought against Plaintiffs, which were brought against THOMAS SANTOS under docket number 2018BX033755 and against ESMIL ROGIERS,

incorrectly arrested as ESMIL ROGERS, under docket number 2018BX033756 in the Bronx Criminal Court regarding the incidents of October 5, 2018, were dismissed forthwith on October 7, 2018 as to THOMAS SANTOS and dismissed on October 4, 2019 as to ESMIL ROGIERS after Plaintiffs were granted adjournments in contemplation of dismissal.

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of stopping and searching automobiles without reasonable suspicion that a crime or offense had been or was about to be committed; of arresting persons without individualized reasonable or probable cause and claiming persons were in possession of things that they were not, in fact, be in possession of, nor had knowledge of, or were not unlawful or crimes to be in possession of, for nefarious, unlawful reasons, including to satisfy arrest quotas and to enhance employment opportunities, and repeatedly providing false information and testimony without reprimand to the offending officers and for nefarious purposes such as degrading, humiliating and subjugating minority males in certain communities.

21. That said illegal and unlawful automobile stops, the arrests of innocent persons without reasonable or probable cause for possession of things they could not have been

in possession of or did not justify a lawful arrest, and conducting of searches in public and while in custody when there is no reasonable basis to conduct such searches, are a matter of public policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

22. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf. That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police

Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

23. Additionally in the case of Floyd, et al. v. City of New York, et al., brought as a class action for persons similarly situated, in the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath, along with other evidence including statistical analysis, that the NEW YORK CITY POLICE DEPARTMENT routinely arrests primarily minority populations without a legal reason to do so, and are required or expected to do so, for amongst other nefarious reasons, to satisfy arrest quotas.

24. Said arrest quotas, euphemistically known under such terms as 'productivity goals', and said wide-spread practice and procedure of stopping primarily minority males in areas populated by primarily persons of racial minorities without legal justification, known as "Stop, Question & Frisk" was thereafter determined by said Court to be created, condoned and implemented in a manner inconsistent and violative of the United States Constitution.

25. Additionally, defendants as named herein have condoned, permitted and caused a policy and procedure of stopping, searching and arresting persons, almost exclusively male minority persons in localities where the majority of the population are of a racial

minority, under the pretense of violating Penal Law 221.10(1), the criminal possession of Marijuana, and falsely swearing that they observed marijuana in public view for the purposes of satisfying arrest quotas and enhance employment opportunities and to humiliate and subjugate said male minority persons whereas the mere possession of said substance without being in public view would only allow for the issuance of a summons, and falsely claiming such marijuana was present in the open when, in fact, it was not, and thereafter strip searching said individuals without the requisite articulable factual basis supporting a reasonable suspicion to believe the arrestee secreted evidence underneath clothing or inside a body cavity, for the same purposes.

26. These policies and procedures are openly or tacitly acknowledged by defendants and are evidenced not only as identified above, and also in violation of stipulations entered into in Federal Courts prohibiting said stops, arrests and invasive searches, but by the fact that such marijuana possessions are know to be had by non-minority populations in the same or greater numbers, yet such arrests and searches are rare and infrequent in non-minority populated areas, but common-place in communities populated by racial minorities, and are evidenced by defendants' own and others tabulations of arrests for these charges in various communities.

27. Furthermore the Police Commissioner, in the Operations Order dated September 19, 2011, number 49, has specifically identified this practice, and, in writing, directed New York City Police Department officers to cease such unlawful arrests, yet said practice continues, unabated, thereby signifying the continued condoning of said unlawful arrests and patterns of arrests as per the above, and evinces the Operations Order to be merely pretextual.

28. Moreover, patterns of such unlawful arrests for substances allegedly found in vehicles after an wrongful search of a vehicle stopped without reasonable suspicion of a crime having occurred is exhibited, for instance, by the wrongful stops, searches and arrests of : RENA RODRIGUEZ, RAMON RODRIGUEZ, Jr. and RAMON RODRIGUEZ, Sr. on or about March 20, 2010 at approximately 1 P.M., at or near the intersection of Unionport Avenue and Tremont Avenue, Bronx, New York; DANIEL TORRES on or about February 16, 2010 at approximately 7 P.M., near 3073 Park Avenue, Bronx, New York and GIOVANNI RAMIREZ on October 22, 2010; DAVID ACABEO June 16, 2010 at approximately 9:25 P.M., at or near the corner of Marmion Avenue and East 179th Street, Bronx, New York; TRACY PIQUAN and LUIS POLANCO August 30, 2010, at approximately 8:50 P.M., at the northwest corner of Davidson Avenue and West Fordham Road Bronx, New York and GEORGE RODRIGUEZ, November 3, 2010 at

approximately 3 A.M., on Featherbed Lane between Nelson Avenue and Macombs Road, Bronx, New York, GIOVANNI RAMIREZ on October 22, 2010 at or near the northeast corner of East Tremont Avenue and Waterbury Avenue, Bronx, New York and LUCILA RODRIGUEZ on January 5, 2012 at 2719 Morris Avenue, Bronx, New York and JOSE ZAMBRANA on September 13, 2013 at East 161st Street and Melrose Avenue, Bronx, New York.

29. Moreover, patterns of such unlawful arrests for marijuana allegedly in public view after an auto stop where no such thing was in public view has occurred to such individuals such as, for instance, DAVE EVANS on October 21, 2009 at approximately 2 pm in front of 4047 Hill Avenue, Bronx, NY; DAVID ACABEO on June 16, 2010 at approximately 9:25 P.M., at or near the corner of Marmion Avenue and East 179th Street, Bronx, New York and TRACY PIQUAN and LUIS POLANCO August 30, 2010, at approximately 8:50 P.M., at the northwest corner of Davidson Avenue and West Fordham Road Bronx, New York and GEORGE RODRIGUEZ, November 3, 2010 at approximately 3 A.M., on Featherbed Lane between Nelson Avenue and Macombs Road, Bronx, New York, and and numerous others, necessarily known to defendants.

30. The herein above described actions and omissions, engaged in under the color

of law by the defendants their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiffs of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his property and person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

31. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

32. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

33. That as a result of the foregoing, the Plaintiffs THOMAS SANTOS and ESMIL ROGIERS were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS THOMAS SANTOS and ESMIL ROGIERS

34. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 33 as though more fully set forth herein.

35. That on January 2, 2019 Plaintiff THOMAS SANTOS, and on November 29, 2018 Plaintiff ESMIL ROGIERS, caused Notices of Claim to be presented to the defendant CITY OF NEW YORK, by presenting copies thereof to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damages or injuries claimed to have been sustained, so far as then practicable.

36. At least thirty (30) days have elapsed prior to the commencement of this action since the presentation of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

37. THE CITY OF NEW YORK demanded, and Plaintiff THOMAS SANTOS did give testimony at a General Municipal Law §50h hearing on February 11, 2019.

38. THE CITY OF NEW YORK demanded, and Plaintiff ESMIL ROGIERS did give testimony at a General Municipal Law §50h hearing on January 29, 2019.

39. This action was commenced on the claims within one year and ninety days after the happening of the events upon which the claims are based.

40. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

41. That on or about October 5, 2018 at approximately 1 P.M., at or near in front of 1760 Andrews Avenue, Bronx, New York, the Plaintiffs THOMAS SANTOS and ESMIL ROGIERS were improperly arrested and confined without knowledge of warrant, without proper authority, privilege or justification, having no reason in law or in fact to arrest or confine THOMAS SANTOS and ESMIL ROGIERS.

42. That the defendants, their agents, servants and /or employees arrested and confined the Plaintiffs without any basis in law or fact and without reasonable, probable or just cause or justification.

43. That the defendants, their agents, servants and /or employees unlawfully arrested, detained, imprisoned and searched the Plaintiffs and took their property without any basis in law or fact, and Plaintiffs being aware of their unlawful confinement were thereby caused freight, shock, emotional distress and physical consequences.

44. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

46. That as a result of the foregoing, the Plaintiffs THOMAS SANTOS and ESMIL ROGIERS were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFFS THOMAS SANTOS and ESMIL ROGIERS

47. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 46 as though more fully set forth herein.

48. That during their aforesaid wrongful arrests, the defendants, their agents, servants and/or employees did forcibly and unlawfully restrain Plaintiffs, and did thereby offend Plaintiffs with unwanted touchings, which constituted assaults and battery upon Plaintiffs.

49. That during their aforesaid detentions Plaintiffs were subjected to strip searches conducted without reasonable suspicion that they were secreting evidence underneath clothing or within a bodily cavity.

50. As a result of the aforesaid assaults and battery, Plaintiffs received injuries with accompanying physical and emotional pain and suffering; that the Plaintiffs were made

to be sore and sustained other injuries, both internal and external and were otherwise damaged and injured.

51. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

52. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

53. That as a result of the foregoing, the Plaintiffs were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFFS THOMAS SANTOS and ESMIL ROGIERS

54. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 53 as though more fully set forth herein.

55. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise, investigate, discipline and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

56. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper conducting of stops, searches and subsequent arrests and lawful treatment of individuals.

57. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiffs THOMAS SANTOS and ESMIL ROGIERS were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiffs were made, still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiffs and for the purchase of drugs and medicines, and that Plaintiffs were and in the future will be prevented from attending to plaintiffs' usual vocation and avocations; all to the Plaintiffs' damage in a sum which exceeds the jurisdiction of all lower Courts.

58. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

59. That as a result of the foregoing, the Plaintiffs THOMAS SANTOS and ESMIL ROGIERS were damaged in sums which exceed the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demand judgment against the Defendants on the First , Second, Third and Fourth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
November 7, 2019


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
THOMAS SANTOS
and ESMIL ROGIERS

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
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To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. Peter Quatrale, Shield 31215 and Sgt. Elvin Pichardo, Shield 004287
46th Precinct
2120 Ryer Avenue Bronx, NY 10457

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

THOMAS SANTOS

I have read the annexed

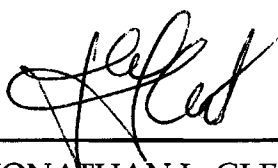
COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff created this document.

DATED: Bronx, N.Y.

November 4, 2019



JONATHAN L. GLEIT, ESQ.